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Mobile Device Management (MDM) Policy

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1 Introducton

The HIPAA Privacy Rule establishes national standards for giving patients the right to access and request amendment of their protected health information (PHI) as well as requesting restrictions on the use or disclosure of such information. The HIPAA Security Rule establishes a national set of security standards for the confidentiality, integrity, and availability of electronic protected health information. The HIPAA Privacy and Security Rules apply to covered entities. Organizations that meet the definition of a covered entity and who transmit health information in electronic form in connection with certain transactions and operations must comply with the Rules' requirements to protect the privacy and security of health information, even when using mobile devices.

2 Background:

The HIPAA Privacy and Security Rules were drafted and first implemented in the early part of the 2000s when mobile devices, as we now know and use them, did not exist. They were used primarily for making and receiving telephone calls. Modifications and updates to the rules have been made, most notably with the 2013 Final Omnibus Rule, however specific rules and regulations in regard to the advancing technology of mobile devices has not occurred.

It would be shortsighted to think that HIPAA rules do not apply to mobile devices since there are no specific regulations governing their usage. HIPAA's expansive rules apply to all IT systems and cover mobile devices despite the term "mobile device" never appearing in either the Privacy or the Security Rules. However, the Privacy and Security Rules routinely reference "workstations," which is defined to mean "an electronic computing device, for example, a laptop or desktop computer, or *any other device that performs similar functions, and electronic media stored in its immediate environment*." *45 CFR § 164.304.*

In short, the Security Rule applies broadly to mobile devices. As such, numerous administrative, physical and technical safeguards must be utilized when mobile devices are being used to view, store, and transmit PHI. PeriGen's HIPAA Policies and Procedures along with the Privacy and Security Rules indirectly set forth the requirements for mobile device management. This document is meant to give specific guidelines to mobile device management (MDM) based on PeriGen's specific requirements based on PeriGen's size, complexity, and capabilities.

3 Overview of Requirements:

Acknowledging the HIPAA Privacy and Security Rules and regulations apply to "workstations" and also to "electronic media," these regulations fundamentally apply to current mobile devices given the manner in which modern mobile devices are used. "Electronic media" is defined to include electronic storage media on which data is or has the

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ability to be stored electronically, *45 CFR § 160.103*. There are several areas of the Rules which apply to mobile devices and electronic PHI (ePHI). The following points give a brief overview of a covered entity's role in adhering to the Privacy and Security Rules as it pertains to mobile devices:

- Implement policies and procedures to prevent, detect, contain, and correct security violations. *45 CFR § 164.308*
- Implement procedures to regularly review records of information system activity such as audit logs, access reports, and security incident tracking reports. *45 CFR § 164.308(a)(1)(ii)(D)*.
- Implement hardware, software, and/or procedural mechanisms that record and examine activity in information systems that contain or use electronic PHI. *45 CFR § 164.312(b)*.
- Implement policies and procedures to ensure that all members of its workforce have appropriate access to ePHI, and to prevent workforce members who do not have access from obtaining PHI. *45 CFR § 164.308(3)(1)*.
- Implement periodic security updates. *45 CFR § 164.308(a)(5)(ii)(A)*.
- Implement procedures for guarding against, detecting and reporting malicious software. *45 CFR § 164.308(a)(5)(ii)(B)*.
- Implement procedures for monitoring log-in attempts and reporting discrepancies. *45 CFR § 164.308(a)(5)(ii)(C)*.
- Establish and implement policies and procedures for responding to an emergency or other occurrence (i.e. fire, vandalism, system failure, and/or natural disaster) that damages systems that contain ePHI. *45 CFR § 164.308(a)(7)(i)*.
- Perform a periodic technical and non-technical evaluation, based initially upon the standards implemented under this rule and subsequently, in response to environmental or operational changes affecting the security of ePHI. *45 CFR § 164.308(a)(8)*.
- Implement technical policies and procedures for electronic information systems that maintain ePHI to allow access only to those persons or software programs that have been granted access rights as specified in *45 CFR § 164.308(a)(4)*.
- Implement procedures to verify that a person or entity seeking access to ePHI is the one claimed. *45 CFR § 164.312(d)*.
- Implement technical security measures to guard against unauthorized access to ePHI that is being transmitted over an electronic communications network. *45 CFR § 164.312(e)(1)*.
- Implement a mechanism to encrypt ePHI whenever deemed appropriate. *45 CFR § 164.312(e)(2)(i)-(ii)*.
- Ensure the confidentiality, integrity, and availability of all ePHI that the covered entity creates, receives, maintains, or transmits. *45 CFR § 164.306(a)(1)*.
- Protect against any reasonable anticipated threats or hazards to the security or integrity of such information. *45 CFR § 164.306(a)(2)*.
- Protect against any reasonably anticipated uses or disclosures of such information that are not permitted or required. *45 CFR § 164.306(a)(3)*.

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- Maintain a record of the movements of hardware and electronic media and any person responsible therefore. *45 CFR § 164.310(d)(2)(iii).*
- Review and modify the security measures implemented as needed to continue the provision of reasonable and appropriate protection of ePHI. *45 CFR § 164.306(e).*
- Implement a mechanism to encrypt and decrypt ePHI. *45 CFR § 164.312(2)(iv).*

It is important to note that this summary of requirements for mobile devices includes laptops, tablets, and mobile smartphones, regardless if the device is owned by PeriGen or if the device is personally owned by the individual (Bring Your Own Device or BYOD).

In regards to (Bring Your Own Device or BYOD): In general, the use of personal computers for daily work is prohibited at PeriGen and **only** a PeriGen issued device should be used.

The following exceptions can apply to this rule:

- Use of personal iPad or phones purchased through PeriGen or secured by PeriGen for use at specific facilities.
- Accessing email through the Office 365 portal on a personal device (since the licensure is HIPAA compliant)
- Accessing or viewing OneDrive documents through the app or Office 365 portal (since the licensure is HIPAA compliant)
- Devices must maintain and comply with policies applied from the PeriGen Office 365 instance
- Never use jailbroken devices (Apple) or "rooted" (Android based) devices.

4 Mobile Device Policy:

4.1 Purpose:

The purpose of this policy is to establish and outline the criteria governing the appropriate and authorized use of personal and/or corporate owned mobile devices where the owner or user has established access and uses these devices access to PeriGen's corporate networks, data, and systems. Mobile devices include but is not limited to mobile smartphones, laptops, tablets, and computers which have access to corporate systems enabling them to access data, send and receive work-related email messages and conduct other PeriGen business.

4.2 Policy Statement:

Mobile devices are important tools within PeriGen as they help to support daily operations and achieve business goals. However, mobile devices also pose a significant risk to corporate data security as these devices can serve as a pathway to unauthorized access to our organization's data and IT infrastructure. If the appropriate administrative, physical and technical safeguards as well as robust security applications and procedures are not applied,

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this unauthorized access can lead to significant data compromise and internal systemic infection. PeriGen has a responsibility to protect its corporate data and information systems in order to protect sensitive information including any PHI/ePHI, access channels to customer systems, intellectual property and reputation in the local medical community.

4.2.1 Scope of Policy:

This policy applies to all mobile devices, both owned by PeriGen or owned by a workforce member, inclusive of mobile smartphones, laptops, tablets, and other computers, that have access to PeriGen corporate IT networks, data, cloud and computer systems. Applications used by workforce members on their own personal devices which store, record or access corporate data or ePHI, such as cloud storage applications and patient medical record keeping, are also subject to this policy.

4.2.2 User Responsibility:

1. **General**—Workforce member agrees to an organizational general code of conduct that acknowledges the need to protect confidential corporate and patient data that is stored on or accessed using a mobile device. This code responsibility includes but is not limited to:

   i) Only loading or accessing corporate data that is essential to their role in the organization onto mobile devices
   ii) Ensuring adequate physical security of the device
   iii) Maintaining the software configuration of the device by having both the operating system and applications installed
   iv) Preventing the storage of sensitive company data and PHI in unapproved applications on the device, including uninstalling and/or disabling unapproved file sharing applications.
   v) Making sure the device's security controls are not disrupted by hacks, jailbreaks, security software changes and/or security setting changes.
   vi) Immediately report a lost or stolen device to the corporate IT service provider, the Privacy & Security Officer and the Director of Compliance & Quality vii) If a user suspects that unauthorized access to corporate data has occurred through a mobile device, the workforce member must report the incident in accordance to company policy.
   vii) Devices must not be "jailbroken" or "rooted" or have any software/firmware installed which is designed to gain access to device functionality
   viii) Users must not load unauthorized or pirated software or illegal content onto their devices
   ix) Applications must only be installed from official platform-owner approved sources. Installing applications from unknown or untrusted sources is prohibited.
   x) Devices must be kept up to date with any manufacturer or network provided patches on a regular basis (at least once per month).
   xi) All devices used for work-related purposes must have software, applications, and encryption (if applicable) installed and enabled according to corporate standards and policy.

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xii) Workforce members must not use corporate workstations to backup or synchronize device content such as media files, unless device content is required for legitimate business purposes. Likewise, corporate mobile devices may not be synchronized to other personal devices in a workforce member's home or residence.

xiii) Workforce members are prohibited from using any cloud-based applications or backup that allows corporate data to be transferred to unsecure parties.

xiv) The above requirements will be checked as deemed necessary and if a device is found to be non-compliant, actions may include the loss of access to company email, **complete disabling of access** to all company applications or programs, a device lock or in severe cases, a device wipe (of a PeriGen issued device).

2. **Personally Owned Devices**—This includes mobile devices, such as personal smartphones, laptops, and tablets, which are not owned by PeriGen or centrally managed by corporate IT services. As such, a support need or technical issue related to the personally owned device is the responsibility of the device owner. The workforce member is responsible for:

i) Maintaining adequate service and proper billing with carrier

ii) Purchasing and using any required software as dictated by the organization which is not provided by the manufacturer or wireless carrier

iii) Device registration with the vendor and/or IT service support as directed

iv) Maintaining necessary warranty coverage

v) Battery maintenance and replacement as needed to maintain a charge to the device vi) Backing up all data, settings, media and applications on a regular basis vii) Using a secure password that complies with the corporate password policy to enter/log in to device and to log in to various applications within the device which require a password (for example, Outlook email, Office 365, OneDrive, etc.)

vi) Installation of up to date software updates and patches

vii) Device registration with corporate IT services as required by the organization

viii) Agreement by workforce member to strictly follow any mandate dictated by the organization as it relates to using a specific program, software, policy or security protocol on personally owned devices which are used for any work-related purpose. The workforce member is responsible for the backup of their own personal data. PeriGen will accept no responsibility for the loss of personal files due to a noncompliant device being wiped for security reasons.

ix) Family member, friends, and/or associates should not use a workforce member's personal mobile device which is used for company purposes.

x) Personal and work email accounts should not be merged on devices. Only company data should be sent the corporate email system. If a user suspects that company data (especially data containing PHI) has been sent from a personal email account, either in subject, email body text or attachment(s), the workforce member must report the incident in accordance to company policy.

xi) Workforce members whose personal mobile devices have camera, video or recording capability are prohibited from using these functions to photograph, video or record

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corporate data (especially data containing PHI), conversations or data unless authorized in advance by management.

3. **Corporate Owned Devices**—Corporate owned mobile smartphone, laptops, and tablet devices will be centrally managed by corporate IT services or the organization's designee. The workforce member is responsible for:

i) Using the device for work-related purposes and not for personal use or purposes
ii) Using a secure password that complies with the corporate password policy to enter/log in to device and to log in to various applications within the device which require a password.
iii) Devices must store all user-saved passwords in an encrypted password store or otherwise password protected means and must never be written down or posted at work station.
iv) Workforce member must comply with the installation of all software updates as dictated by corporate IT service support.
v) Only devices in which the applications used to store or transmit ePHI are managed by corporate IT service support will be allowed to connect directly to the internal server/corporate network
vi) Corporate owned devices will be subject to the security features as dictated by corporate IT service support such as encryption, password protection, key lock, screen saver lock, etc. The policies for all corporate owned devices will be regulated by the corporate IT service support provider using the corporations chosen mobile device management software.
vii) Reporting a lost or stolen device immediately
viii) Reporting the known or potential unauthorized use of a corporate owned device by someone not affiliated with the corporation.
ix) Workforce members may not store information from or related to former employment on a corporate owned device.

4.3 Best Practices Guidelines (to be followed by all PeriGen workforce members)

4.3.1 Use a Password or other User Authentication

i) Mobile devices will require a password, personal identification number (PIN), passcode (pattern trace) or fingerprint identification to gain access to the device. Passwords, PIN, and passcodes will be a secret and not stored on the mobile device.
ii) Workforce members will create a "strong" password which will be easy for the member to remember but hard for others to guess. The password should be at least six (6) characters in length and should include a combination of upper and lower case letters, at least one number and at least one special character, such as a punctuation mark.
iii) Passwords will be created and changed regularly in accordance to PeriGen's password management policy (HIPAA-WI-006 Password Management).
iv) Enable the mobile device time-out, screen lock or automatic logoff feature on devices.
v) Set devices to limit the number of unsuccessful login attempts.

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vi) Limit access to device utilities and settings to authorized or authenticated user(s).

vii) Use other methods to authenticate your device such as camera, pattern gesture recognition, and biometrics (fingerprint recognition). Combining a password or PIN with one of these other authentication methods provides further security to your device.

4.3.2 Install and enable encryption

i) Encryption is the conversion of data into a form that cannot be read without the decryption key or password.

ii) Devices will utilize encryption technology inherent to our HIPAA compliant licensure through Microsoft Office 365 and OneDrive for corporate emails and storage of corporate data.

iii) Data stored locally on the mobile device (data at rest) and data sent by the mobile device (data in motion) must be encrypted, particularly if the data contains PHI.

iv) OneDrive can be used to access corporate context on mobile devices. Saving OneDrive corporate data on mobile devices should be avoided but in the case it is used, always follow server controlled configurations to ensure data is accessed securely and remains secure if cached on the device.

v) PeriGen's policy is to NEVER send ePHI via text message.

vi) If PHI must be sent to external users (internal email in automatically encrypted), it will be sent only with the approve corporate encrypted email mechanism.

vii) If any correspondence containing PHI has to be sent to workforce members and there is an issue or failure of encryption technology, all correspondence, emails, and attachments must be properly de-identified prior to being sent via standard email or other unencrypted means.

4.3.3 Install and Activate Remote Wiping and/or Remote Disabling

i) Remote wiping is a security feature that enables remote erasing of the data on a mobile device if the device is lost or stolen.

ii) Remote disabling is a security feature that enables one to remotely lock or completely erase data stored on a mobile device if it is lost or stolen. If the device is recovered, it has the ability to be unlocked.

iii) Any mobile device connected to the corporate Office 365 service for business purposes will be equipped with Microsoft Office 365 management utilities which enables these devices to be remotely wiped.

iv) Users are forbidden to override any of the settings imposed by the corporate Office 365 policies.

v) The administrator of Office 365 for PeriGen can remotely disable all access to all Office 365 related products, such as Outlook and OneDrive. The administrator can also remove workforce members from access lists to prevent them from seeing all documents and files stored in OneDrive. With mobile device management through Office 365, there is the ability to do remote wiping of registered devices if needed.

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vi) Actions which may result in a full or partial wipe of a mobile device, or other interaction by IT service support include:
   (1) A device that is jailbroken or rooted
   (2) A device which contains an application known to contain a security vulnerability (if not removed within a specific time-frame after informing the user of issue)
   (3) A device that is lost or stolen

vii) Any decision to perform a selective or full wipe of a mobile device will be at the sole discretion of the managing board after reviewing information that supports this action being necessary. No individual within PeriGen has the authority to perform this action.

4.3.4 Avoid using file sharing applications as much as possible

i) File sharing is software or a system that allows individual users of the internet to connect to each other and trade files.

ii) File sharing can enable unauthorized users to access your mobile device without your knowledge which puts your device and the information it holds at risk.

iii) PeriGen file sharing will only be approved through OneDrive for business via Office 365 corporate subscription.

iv) PeriGen Workforce members will avoid the installation and use of File Sharing apps on mobile devices used for corporate communication as much as possible.

v) If absolutly required, workforce members will exlucde PeriGen coprporate data from File Sharing apps. In addition, File Sharing apps will be configured to always prompt the user for replication approval.

4.3.5 Consider installing and enable a firewall

i) A firewall on a mobile device can protect against unauthorized connections.

ii) Firewalls intercept incoming and outgoing connection attempts and either blocks or permits the connection based on a set of rules.

iii) Corporate owned devices may have firewalls installed and enabled per the software recommendations of PeriGen's corporate IT service support

iv) Consider the use of firewalls on personally owned mobile devices while using the mobile device to conduct PeriGen business.

4.3.6 Install and enable security features

i) Users will comply with any security system deployed centrally by PeriGen corporate IT on mobile devices.

ii) Workforce members are responsible for security software on all personally owned devices. The device operating system software must be kept current with all updates, including security updates.

iii) Workforce member agrees to enable security software included on personally owned mobile device, and if not included, download security software to the mobile device.

iv) Limit access to mobile device utilities and settings to authorized or authenticated user(s).

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v) Workforce member agrees to random checks of mobile device configuration to ensure compliance with all applicable corporate security policies if deemed necessary.

vi) Devices must not be connected to a PC or other unit which does not have up to date and enabled anti-virus/anti-malware protection and which does not comply with corporate security policy.

vii) All workforce members must comply with the requirements of MDM through use of Office 365 and its HIPAA compliant applications. If additional security requirements and/or the need for a MDM software on personal devices are deemed potentially necessary due to practice dynamic, this need will be evaluated at the PeriGen senior management level. PeriGen senior management has the ultimate authority to **approve or deny** any software and/or applications to be used on PeriGen issued, PeriGen owned or personal devices used within the Practice. PeriGen senior management has the ultimate authority to **require use of** any software and/or application to be used on PeriGen issued, PeriGen owned or personal devices used within the Practice.

4.3.7 Keep security software up to date

i) Updating security software ensures the latest tools to prevent unauthorized access to PHI is available on your mobile device.

ii) Set devices to automatically transfer software updates directly to mobile devices when these updates become available from the manufacturer or wireless carrier. iii) Aid the prompt transmission of security software updates by turning on and using features such as automated update options or vendor notification options.

iii) Install security software updates as soon as they become available. Avoid using the "remind me later" option on your mobile device.

iv) Update key applications and the device operating system (OS) regularly to ensure the most up to date and secure versions are available for your mobile device.

v) Configure your device to alert you of application and system updates and make sure any software updates require your authorization (passcode) to proceed.

vi) All PeriGen workforce members agree to keep security software on mobile devices updated at all times.

4.3.8 Research mobile applications (apps) before downloading

i) A mobile app is a software program for mobile devices. Examples include: games, note taking programs, and health related tools, such as EHR software.

ii) A mobile app has the ability to compromise data on a mobile device, especially if it is from an unknown source.

iii) Before downloading and installing apps on your mobile device, verify that the app will only perform functions which you approve.

iv) If apps must be downloaded, use only known, trusted websites and sources who have reputable reviews of the app.

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4.3.9 Maintain physical control

i) The benefits of mobile devices, such as portability, small size and ability to be concealed, are also some of the features that pose a challenge in protecting and securing these devices which often contain PHI as these devices can be easily lost or stolen.

ii) A mobile device that is accessible to unauthorized users poses a risk to the confidentiality, integrity and availability of PHI on the mobile device. iii) Physically securing the mobile device can limit the risk of unauthorized users tampering with or stealing the device. iv) Workforce members agree to maintain physical control of their mobile device by adhering to the following:

1. Physically secure your mobile device—locking mobile device in a secure location, such as a locked drawer or behind a locked office door, prevents unauthorized users from accessing data through or on the device.
2. Lock mobile device screen when not using it—Require passcode access on the mobile device to unlock the screen. Also set mobile devices to automatically timeout/logoff to lock screen after a set time of inactivity.
3. Keep your mobile device with you or physically secure your mobile device if you cannot keep it on your person.
4. Do not let others use your mobile device—by sharing your mobile device with others, you can increase the risk of an unauthorized user accessing PHI through your device.

4.3.10 Use adequate security to send or receive health information over public Wi-Fi networks

i) In the unlikely event that access and/or transmission of ePHI is absolutely required, it is only permitted through the corporate managed Microsoft Outlook email client, Outlook Web Access or via the Dynamics CRM application, all of which provide an encrypted communication between client and server. Users are not allowed using any other method of communication of ePHI regardless of the network used.

ii) Be mindful of security when connecting to public Wi-Fi network or hotspot is that information can be intercepted between the mobile device and the system connection.

iii) Always try to use established Wi-Fi services like official airports Wi-Fi or corporate guest Wi-Fi at hospitals, Hotels and such. Avoid unknown origin Wi-Fi netwroks.

iv) A secure Wi-Fi connection uses encryption that helps you keep data safe from interception by an unauthorized third party when data is being transmitted.

v) The secure portal allows for secure transmission of ePHI in an encrypted form even while using a public Wi-Fi network.

vi) All PeriGen files stored in OneDrive is secured in transit and at rest as a feature of PeriGen's Office 365 enterprise licensing. Therefore, logging into OneDrive will put the user into a secure container even if a public Wi-Fi network is being used.

vii) Try to limit internet browsing or use to secure browser connections. A secure browser connection will display "https" in the website address.

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viii) A Virtual Private Network (VPN) is one way to create a secure connection over a public unsecured Wi-Fi network. It creates an encrypted connection between your mobile device and the server, so the information sent and received is protected by the encrypted conduit created by the VPN, even on a public, unsecured network.

ix) Workforce members should strongly consider using a VPN when using personal mobile devices for work-related purposes, especially when an unsecured public Wi-Fi network must be used for internet access.

4.3.11 Delete all stored health information before discarding or reusing the mobile device

i) Corporate owned devices are equipped with Microsoft Office 365 management utilities which gives corporate IT service support the ability to delete or wipe the device and any PHI stored on the device before it is discarded or reused. This ensures ePHI and other corporate data is protected and secured from unauthorized use.

ii) The Office for Civil Rights (OCR) affiliated with the U.S Department of Health & Human Services (HHS) has guidelines established for the proper removal of PHI and other sensitive data stored on mobile devices prior disposal or reuse of the device. The methods include:

(1) Clearing—using software or hardware products to overwrite media with no sensitive data

(2) Purging—degaussing or exposing the media to a strong magnetic field in order to disrupt the recorded magnetic domains

(3) Destroying—disintegrating, pulverizing, melting, incinerating, or shredding the media

iii) PeriGen's "Device and Media Controls" policy (HIPAA-WI-006 Technical and Infrastructure Security) gives specific details regarding our commitment to delete all stored PHI on devices prior to discarding or reusing them.

4.4 MDM Policy Enforcement

1. Any workforce member who willingly violates, or refuses to comply with, the mandates set forth in the MDM Policy may be subject to disciplinary action guided by PeriGen's disciplinary action plan and/or from direct guidance from the Management Committee or upper level management.

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